

[herein Plaintiff] effectively ousting Plaintiff. (See, supra, *Zaslow v. Kroenert* (1946) 29 Cal. 2d 541, 548.)

Accordingly, Plaintiff is entitled to claim imputed fair market value rent against defendants following their effective ouster of Plaintiff from the Subject Property. Pursuant to Evidence Code §720, Plaintiff offers the expert opinion of California-licensed real estate salesperson, Jeffrey Good, and adopts his valuations pursuant to Evidence Code §813(a)(2) as her own in support of the following claims of fair market value rental compensation from defendants. Mr. Good's Declaration regarding his professional qualifications and opinion of fair market value rent for the years relevant to this matter opines that a principal figure of \$40,270.00 in uncompensated fair market value rent is owed to Plaintiff. Including 10% interest, Plaintiff claims a total of \$44,108.64 in uncompensated rent with interest.

Defendant Timothy Paulding objects to imputed rent based on ouster on multiple grounds. However, none of the grounds are supported by statutes, case law, or any legal authority.

In California, Judges may ignore unsupported arguments entirely. (*Walton v. Superior Court* (1999) 77 Cal.App.4th 886, 893 [Courts are not obliged to search the law for arguments not provided by the parties], See, *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830 [arguments not supported by legal authority are waived and need not be considered by the court], see also, California Rules of Court, Rule 3.1113(a): Points not supported by legal argument or authority may be disregarded.)

Defendants' Offset Claims from November 2023 to May 2025

Mortgage Payments: None. Payment history stops at 2018.

Maintenance Payment: None. Payment history stops at 2023.

Insurance Payments: \$2,250.00 (2024 to July 2025; additional two months in 2025 offsets the missing 2 months in 2023.)

Property Taxes: None. Payment history stops at 2023.

Conclusion

The Court grants Plaintiff its principal figure of \$40,270.00 in uncompensated fair market value rent without interest. The Court grants Defendants' offset of \$2,250.00 in insurance payment for the property made during the subject time period. Thus, the Court grants \$38,020.00 to Plaintiff for back rent for the subject time period less the property insurance paid by Defendants during the subject time period.

Based on the explanation provided above, **the Court approves Referee David W. Martin updated proposed order for allocation of the proceeds for the sale of 5648 Burlingame Avenue in Richmond, Contra Costa County, California subject to including \$38,020.00 to Plaintiff for back rent for the subject time period less the property insurance paid by Defendants during the subject time period.**

11. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING

***HEARING ON MOTION IN RE: CONFIRM AND/OR IMPOSE LIEN ON SHARE OF JOHN AND TIMOTHY PAULDING IN PROCEEDS OF SALE (CONTINUED FROM: 12/11/2025 AND 01.08.26)**

FILED BY:

TENTATIVE RULING:

See line 10.

12. 9:00 AM CASE NUMBER: C24-03541

CASE NAME: DANICA AULAUMEA VS. AIRBNB, INC.

***MOTION/PETITION TO COMPEL ARBITRATION AND STAY PROCEEDINGS**

FILED BY: AIRBNB, INC.

TENTATIVE RULING:

Continued to February 19, 2026, 9:00 a.m., on the Court's own motion.

13. 9:00 AM CASE NUMBER: C25-01059

CASE NAME: SHELLEY MYTHEN VS. THE ESTATE OF IDA ALFARO,

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WILLIS, DONNA

TENTATIVE RULING:

The Court has received the First Amended Complaint filed by plaintiff on February 2, 2026 and defendant's opposition to the First Amended Complaint. Code of Civil Procedure section 472(a) requires that an amended complaint filed after a demurrer must be filed no later than the date the opposition to the demurrer is due. However, absent prejudice to the opposing party, courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial." (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) In light of this well-settled policy of the courts, the Court will allow the untimely First Amended Complaint, which now becomes the operative pleading.

The **demurrer hearing is vacated as moot.**

14. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: FOR ORDER SUBSTITUTING PARTY PURSUANT TO CCP 377.31 AND PERMISSION TO AMEND COMPLAINT**

FILED BY:

TENTATIVE RULING:

Granted. The moving papers establish adequate grounds and there is no opposition.

15. 9:00 AM CASE NUMBER: MSC20-01311

CASE NAME: MICHAEL PRICE VS. STARLIGHT MARINE SERVICES, INC.

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**

FILED BY: PRICE, MICHAEL

TENTATIVE RULING:

Plaintiffs Michael Price and Douglas Anderson move for preliminary approval of their class action and PAGA settlement with defendant Starlight Marine Services, Inc.